

May 4, 2026
Dept. 9
Probate Tentative Rulings

16.	26PR0060	MATTER OF BUCHANAN
Petition to Appoint Successor Trustee		

Petitioner, Howard Speer ("Petitioner" or "Howard"), respectfully presents this Petition for Order Appointing Successor Trustee for Testamentary Trust to Fill Vacancy (Probate Code §§ 15660(d) and 17200(b)(10)).

H. H. Buchanan, also known as Rudy Buchanan ("Decedent"), died testate on April 2, 1978, in El Dorado County, California, and was a resident of El Dorado County, California, at the time of his death. Decedent's Last Will and Testament dated September 10, 1971 ("Decedent's Will") was duly admitted to probate in these proceedings (a copy of Decedent's Will is attached hereto as Exhibit A and incorporated herein by reference). An Order Approving Final Account and Report and Decree of Distribution was filed in these proceedings on June 24, 1980 (the "Order") (a copy of the Order is attached hereto as Exhibit B and incorporated herein by reference).

Pursuant to paragraph 5 of the Order, a testamentary trust was established for the benefit of Decedent's spouse, Jean Buchanan ("Jean"), for Jean's lifetime. Upon Jean's death, the remaining assets of the testamentary trust were to be distributed to Decedent's daughter, Betty Jo Speer ("Betty Jo"). Max H. Hoseit ("Max") was named as the trustee of the testamentary trust per the Order. Jean died on February 25, 2006. Betty Jo died on June 13, 2019. Max died on January 31, 2025.

Although Betty Jo was entitled to outright distribution of the testamentary trust assets upon Jean's death, record title to an undivided 20% interest in real property located at 152 Highway 50, Stateline, Douglas County, Nevada (the "real property"), is currently vested in Max's name as trustee of the testamentary trust. The real property is currently in escrow and a successor trustee is needed to manage, convey and deal with the testamentary trust's undivided 20% interest in the real property. Betty Jo died intestate, survived by her husband, who is the Petitioner, and their two adult children. The children, Liz and Gary, have each consented to Petitioner being appointed as the trustee. A Consent to Appointment of Successor Trustee signed by Liz is attached hereto as Exhibit C and incorporated herein by reference. A Consent to Appointment of Successor Trustee signed by Gary is attached hereto as Exhibit D and incorporated herein by reference.

TENTATIVE RULING #16:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.